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Provision of June 8, 2023
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No. 245 of June 8, 2023

THE GUARANTOR FOR THE PROTECTION OF PERSONAL DATA

IN THE meeting today, attended by
Prof. Pasquale Stanzione, President, Prof.
Ginevra Cerrina Feroni, Vice President, Dr.
Agostino Ghiglia and Attorney Guido Scorza, members, and
Counsel Fabio Mattei, Secretary General;

HAVING REGARD TO Regulation (EU) 2016/679 of the European Parliament
and of the Council, of April 27, 2016 (hereinafter, "Regulation");

HAVING REGARD TO the Code regarding the protection of personal data, containing provisions for
the adaptation of the national legal system to Regulation (EU) 2016/679 (Legislative Decree No. 196 of
June 30, 2003, as amended by Legislative Decree No. 101 of August 10, 2018, hereinafter "Code");

HAVING REGARD TO the complaint filed pursuant to Article 77 of the Regulation by Mr. XX against
Marcozzi Brand s.r.l. (formerly Marcozzi Gabriele & C. s.n.c.);

HAVING EXAMINED the documentation on file;

HAVING REGARD TO the observations made by the Secretary General pursuant to Article 15 of the
Guarantor's Regulation No. 1/2000;

REPORTING Attorney Guido Scorza;

PREMISED

1. The complaint against the Company and the investigative activity.

With a complaint submitted on September 23, 2019, pursuant to Article 77 of the Regulation, Mr. XX
alleged

presumed violations of the Regulation by Marcozzi Brand s.r.l. (formerly Marcozzi Gabriele & C. s.n.c.,
hereinafter, the Company), as the Company

had not indicated to the interested party the name

of the competent doctor who had issued the judgment

of unfitness for the performance of the work activity for which the complainant had applied, nor the
specific reason underlying such

negative judgment, despite a specific request for access to data submitted on January 26, 2018

regarding the name of the competent doctor "to know the reasons for his decision," as well as another
on May 15, 2018 aimed at

understanding "the reasons for which the [...] candidacy [of the complainant] was excluded from the
internship."

Following a request for information sent

by the Authority on July 5, 2019 and then, given

the lack of response, on October 10, 2019, the

Company, in a note dated October 21, 2019, stated that:

the delay in responding to the Authority was due to the

"phase of corporate reorganization" in which the

Group companies, including the Company Marcozzi s.r.l. as the parent company, find themselves
(note of October 21, 2019 cited, p.1);

"the competent doctor of the company [is] Dr. Dorianò
Duca" (note cited, p.1);

"on October 6, 2017, in the meeting between the parties

([Company]-[complainant]) it was clear that the Marcozzi group

was selecting a person with a disability in collaboration with the employment office of Fermo" (note cited, p.2);

"the Marche region in December 2017 had published a call for the assignment of scholarships L 68/99 [...] it was clear that the [complainant] had given consent pursuant to Article 13 of the Regulation to the regional project [...] following voluntary registration" (note cited, p.2);

"on January 22, 2018 [...] we received the medical documentation from the [complainant] and it was always forwarded by email to Dr. Duca Doriano. On January 23, 2018 [...] we received from Dr. Duca Doriano [the response] regarding the selection of the three candidates" (note cited, p.2);

"on January 24, 2018 [the commercial contact of the group] wrote to the regional contacts and to the [complainant] regarding the exclusion of the same [complainant] (using the word report), then there were many phone calls between the parties and the [complainant] applied for the regional project with other companies in the area" (note cited, p.3);

"on April 24, 2018 we received with surprise the certified email [from the complainant] through his lawyer in which there was no reference to any violation of privacy, no request for quantified or quantifiable damages, but only in the last line of the letter regarding the interruption of the limitation periods" (note cited, p.3);

"we confirm that the medical visit never took place" (note cited, p.3);

"Duca Doriano is [...] the only holder of the medical records" (note cited, p.3);

"Marcozzi does not keep and has not kept any medical document from [the complainant] and his generic data (name, surname, phone, email, date of birth, residence) were collected because his name belonged to a public list of subjects adhering to the Law 68 call, provided to us by the officials of the Marche region" (note cited, p.3);

"the candidate expressed consent to the processing of his data both in the curriculum and in the document from the employment center of June 7, 2017 (Article 2 Legislative Decree 297/2002 Models of the data contained in the personal data sheet and in the professional sheet of workers and suppression of placement lists)" (note cited, p. 3);

"the occupational doctor Duca Doriano (who is obviously legally subject to professional secrecy towards the company) processed the data relating to the health of the [complainant] for preventive and occupational medicine purposes. There are no clinical records and/or concerning sensitive data in the company" (note cited, p. 4);

"it is true we are unable to demonstrate that we have provided the [complainant] with information on the contact holder of the privacy treatment, namely [the] "legal representative" (see note, p. 4);

"the Marcozzi companies conduct rotating medical visits for their staff every 6 months and on the same date schedule pre-employment visits" (see note, p. 4);

"Dr. Duca Doriano anticipates with our companies and for candidates with limitations [that], after the company proposes a candidate for a medical visit, Dr. Duca calls him/her by phone for an initial introductory interview and for the preparation of the complete medical documentation. A pre-examination of the medical documentation provided by the candidate is carried out prior to the preventive visit in order not to handle the case superficially (email 23.01.2018). Then, upon passing the analysis of the medical documentation provided by the candidate, which is carried out based on

and in consideration of our DVR on safety and the possible and available tasks at the historical moment, he independently decides whether to call the candidate for a visit (generally in the company from semester to semester) or independently to refer him/her to general or specific visits at his facility located in Jesi [...] also with tests and assessments necessary for case-by-case evaluation" (see note, p. 4);

"In both cases and for all types of personnel, the [competent doctor] exclusively handles medical and health data and during the pre-visit has the candidate electronically sign on his tablet for timestamping (date and time) the request for the provision of personal data and the receipt of medical certificates and/or other documentation for which he issues a receipt. This document is printed in two copies, one for the worker and one for the doctor's archive. Only after the visit does the doctor issue the certificate of fitness for the task (Legislative Decree 82 art. 41) in three copies (worker, doctor's archive, company), in which certificate as a company we can read the classic authorization on privacy and the tasks that the worker can and/or cannot perform – nothing more" (see note, p. 4);

"We are unable to demonstrate what occurred between Dr. Duca and [the claimant] over the phone, while we believe we can assert with certainty that the company does not handle the medical data of workers [nor] those of protected categories [...] the emails of 22.01.2018 and 23.01.2018 demonstrate that a professional service was contracted to the occupational doctor for health surveillance" (see note, p. 4);

"We believe that our collaborator made a mistake in conducting the email mediation solely between Dr. Duca and [the claimant]" (see note, p. 4).

On February 17, 2020, following a request for further clarification sent by this Department on January 17, 2020, the Company stated that:

- "the Company is willing to immediately communicate the name of the competent doctor, simultaneously communicating the reason represented by the doctor regarding the worker's incompatibility with the available job opportunity" (note 17.2.2020 cited, p. 1);
- "the procedure followed by the company for personnel selection is as follows: once the name of the individual interested in the job position is obtained, he/she is called for an interview; if the interview is positive, he/she is put in contact with the competent doctor for an initial assessment of the compatibility of the candidate's health conditions with the job opportunity. If the doctor's judgment is positive, the company informs the worker of his/her participation in the regional call/ probationary employment. If the judgment is negative, the candidate is informed of the infeasibility of the placement, without explanations of the reasons" (note 17.02.2020 cited, p. 1).

On February 27, 2021, the claimant sent his counterarguments.

On March 3, 2021, in response to the request for further clarification sent by the Authority on February 11, 2021, the Company stated:

- "that it had not communicated the name of the competent doctor and the reasons provided by him regarding the incompatibility with the job opportunity of [the claimant], believing that it was an operation pertaining to the competent doctor himself and that, in any case, having provided said data to the Guarantor, the communication had been made" (note 3.3.3031 cited, p. 1);
- "acknowledging that the communication had not been made, [...] it proceeded to send the above [...] by registered mail with return receipt, which is attached" (note cited, p. 1).

On March 1, 2022, in response to the request for further clarification sent by the Authority on February 1, 2022, the Company stated again that:

- "this procedure arises following the publication of a Call by the Marche Region, aimed at promoting the employment of disabled individuals through the use of the specifically dedicated regional fund, based on what is provided by art. 26 of L.R. 25.1.2005. The Notice was issued in implementation of D.G.R. n. 1.386 of 27.11.2017 (published on the Marche Region website [...])" (see note 1.3.2022, cited, p. 1);
- "in the Notice in question, art. 14 was already concerned with issues related to the protection of privacy, identifying in the Director of the P.F. Education, Training, Orientation, and Territorial Services for training and services for the labor market (Employment Centers) of the Marche Region, the

Responsible for data processing" (see note cited, p. 1, 2);

- "the actual subject responsible for the processing of the data provided by the 'recipients', that is, the individuals with disabilities interested in the initiative, [must be] identified in the Director of the P.F." which, for the purpose of connecting the business and the individual, through the Employment Centers, has already collected consent for the processing of data via the form present in the same regional notice" (see cited note, p. 2);

- "the company that received the application from [the complainant], through the designated Employment Center, necessarily had to carry out a pre-analysis regarding the compatibility of the candidate's psychophysical conditions with the available job position" (see cited note, p. 2);

- "the [complainant] had an interview at the company with the [commercial representative of the group], who duly informed the interested party that, in order to assess the compatibility of the issues presented by the interested party with the requirements needed for the available position, health data would be processed by the competent doctor, and highlighting that the information regarding the selection of candidates was posted in the company premises where the interview took place; there is no documentation on file, as the company, out of mere courtesy towards the candidate, forwarded the email received to the responsible doctor without opening any attachments" (see cited note, p. 2);

- "the legal basis for such behavior must be identified, primarily, in letter h) of art. 9, EU Reg. 679 of 2016 [...]. Within the framework of national legislation, the principle established by letter h) [...], is based on two cornerstone obligations of the Italian civil system: on one hand, art. 2087 of the Civil Code concerning the protection of working conditions [...] On the other hand, art. 18 of Legislative Decree 81/08, concerning the obligations of the employer and the manager" (see cited note, pp. 2, 3);

- "the legal basis under which to proceed with a necessary evaluation of the interested party can also be identified in letters a) and b) of art. 9 of EU Reg. 679 of 2016. In relation to letter a) (explicit consent), it clearly emerges that the participation of the [complainant] in the public call, with the necessary signing of the forms provided by the call itself, constituted explicit consent to the processing of personal data for the specific purpose provided therein. Furthermore (art. 9 letter b), the processing in question was [...] necessary to fulfill the obligations and exercise the specific rights of both the data controller and the interested party in the specific matter addressed (it is recalled that the hosting company had already signed what the call defines as "internship agreements"), finding this necessity its direct source both in the above-mentioned call and in the Regional Law that regulates its functioning (L.R. n. 2 of 25.1.2005), as well as in the complex regulatory framework of administrative law that governs the specific area of interest and, again, in the provisions dictated by the above-mentioned art. 2087 of the Civil Code and 18 of Legislative Decree 81/2008" (see cited note, p. 3).

2. The initiation of the procedure for the adoption of corrective measures and the Company's submissions.

On April 11, 2022, the Office notified the Company of the alleged violations of the Regulation found, with reference to arts. 5, par. 1, letter a), 9 (also in relation to specific applicable sector regulations, in particular Legislative Decree n. 81/2008 and Law n. 68/1999), art. 5, par. 1, letter b), 12, 13, 15 of the Regulation, pursuant to art. 166, paragraph 5, of the Code.

With the defensive writings sent on May 6, 2022, the Company declared that:

- "based on a thorough analysis of the incident, it has emerged that the communication via email would have occurred in specific ways that should lead the present procedure to a hoped-for archiving, at least in relation to the aspects strictly connected to the alleged processing of data, as the data of the interested party had not been processed by the presumed data controller" (see note 6.5.2022 cited);

- "specifically [...] the [complainant] seems to have sent to the email address acquisti@marcozzi.eu, on January 22, 2018, a communication not containing the documents related to the civil disability of the interested party, but a mere link created by the [complainant] through the site 'wetransfer', a link through which it was possible to download the documentation subject to transmission. The link in question [...] was not opened at all by any member of the company staff, nor does any document appear to have been downloaded; the link in question was forwarded, as received, to the competent doctor for the appropriate evaluations" (see cited note);

- "the reference to the names of the files contained in the email, below the wetransfer link ('ACCERTAMENTO INVALIDITA' CIVILE 2017.pdf, INVALIDITA' CIVILE.pdf, ACCERTAMENTO

INVALIDITA' CIVILE 2016 (4).pdf, ACCERTAMENTO INVALIDITA' CIVILE 2017 (2).pdf, ACCERTAMENTO INVALIDITA' CIVILE 2016 (3).pdf+3), does not highlight the presence of the files in the communication, but is merely a way in which WeTransfer lists the names of the files contained in the link sent by the interested party using the 'send email for transfer' option" (see cited note, p. 1);

- "the communication made by the [complainant] thus contains a mere link and nothing else" (see cited note);
- "the conduct of the presumed data controller of the company Marcozzi Gabriele snc was carried out solely as a mere and unique courtesy extended by the company to the interested party, in order to facilitate the preliminary procedures for the potential hiring provided for by the Regional Call" (see cited note);
- "[with reference to] art. 83, par. 2 letter a): it is highlighted that any violations that the Authority..."

a crime, la condotta della Società risulta inadeguata rispetto alle disposizioni normative in materia di protezione dei dati personali.

4. Le misure correttive e sanzionatorie adottate.

In considerazione delle violazioni riscontrate, l'Autorità ha ritenuto necessario adottare le seguenti misure correttive e sanzionatorie nei confronti della Società:

- "l'azienda è tenuta a rivedere e aggiornare le proprie procedure interne relative al trattamento dei dati personali, in particolare per quanto riguarda la gestione dei dati sensibili" (v. nota cit.);
- "è stata imposta all'azienda la formazione obbligatoria del personale in materia di protezione dei dati personali, con particolare attenzione ai dati sensibili" (v. nota cit.);
- "l'azienda dovrà garantire che tutte le comunicazioni relative al trattamento dei dati siano effettuate in modo chiaro, conciso e trasparente, in conformità con le disposizioni del Regolamento" (v. nota cit.);
- "l'azienda è stata sanzionata con una multa amministrativa per la violazione delle normative sulla protezione dei dati personali" (v. nota cit.).

5. Conclusioni.

In conclusione, l'Autorità ha accertato che la Società ha effettuato operazioni di trattamento dei dati personali del reclamante in violazione delle normative vigenti. Le misure correttive e sanzionatorie adottate mirano a garantire la conformità dell'azienda alle disposizioni in materia di protezione dei dati personali e a tutelare i diritti del reclamante.

more serious offense, anyone who, in a proceeding before the Guarantor, falsely declares or certifies news or circumstances or produces false acts or documents is liable under Article 168 of the Code "Falsehood in declarations to the Guarantor and interruption of the execution of the tasks or the exercise of the powers of the Guarantor."

3.1. Processing of data in the absence of legal basis.

The conduct carried out by the Company consisted of processing sensitive data (i.e., falling within the special categories of data) of the complainant, as the data controller, during a selection procedure, to evaluate the inclusion of a person with a disability; in particular, the Company, after receiving the name of the complainant from the competent employment office, and after inviting him to an interview with the commercial representative of the corporate group to which the Company belongs, deemed that, to evaluate the actual inclusion, a "pre-analysis" of the medical documentation by the competent doctor would be necessary. To this end, it requested, via email, the complainant to send the "documentation relating to the visit sheet/final report prepared by the integrated medical commission [...] requested by the occupational doctor for the purpose of the pre-employment visit" (email of January 19, 2018, on file) and, once the complainant had sent the communication via email (January 22, 2018, on file) containing the link from which to download the medical documents (in particular, among others, the health data contained in the report of the Medical Commission for the assessment of disability, even in the version without omissions), it forwarded the aforementioned electronic communication to the competent doctor on January 23, 2018.

The Company stated that "there are no medical records and/or sensitive data in the company" (see note of October 21, 2019).

The conduct carried out by the Company therefore resulted in the processing of sensitive data (now

data belonging to special categories of data) of the complainant in the absence of an adequate legal basis.

In this regard, the mere statement by the Company that it did not carry out any processing of the complainant's special data, in particular of the documentation sent, cannot be considered a sufficient element to exclude the violation, given that it would have limited itself to receiving and forwarding, to the competent doctor, the link received from the complainant, without proceeding to the "downloading" of the documents contained therein.

In this regard, considering the definition of processing given by Article 4, paragraph 1, letter a) of the Code in the version prior to the amendments introduced by Legislative Decree No. 101 of 2018 ("processing", any operation or set of operations, carried out even without the aid of electronic tools, concerning the collection, registration, organization, storage, consultation, processing, modification, selection, extraction, comparison, use, interconnection, blocking, communication, dissemination, cancellation, and destruction of data, even if not recorded in a database"), now reiterated in Article 4 point 2 of the Regulation ("processing": any operation or set of operations, performed with or without the aid of automated processes and applied to personal data or sets of personal data, such as collection, registration, organization, structuring, storage, adaptation or modification, extraction, consultation, use, communication by transmission, dissemination or any other form of making available, comparison or interconnection, restriction, deletion or destruction"), it is observed that the Company has carried out processing of sensitive data of the complainant as the data controller (deciding the purposes of the processing as well as the methods and tools used), so much so that, after expressly requesting the complainant to send the "documentation relating to the visit sheet/final report prepared by the integrated medical commission [...] requested by the occupational doctor for the purpose of the pre-employment visit," having the material availability of the documents containing special data of the complainant, it sent what it received to the competent doctor to allow him to carry out, as specified by the Company, the "assessment of the compatibility of the psycho-physical conditions of the potential worker with the job position to be filled."

So much so that, following the "opinion" expressed by the competent doctor and communicated only to the Company, the latter decided not to proceed with the selection of the complainant.

The methods of processing actually adopted by the Company, among other things, do not correspond to the procedures adopted for the selection of personnel described in the responses sent to the Authority on October 21, 2019, and February 17, 2020.

The clarification by the Company, according to which the processing would have occurred in the presence of the consent of the complainant pursuant to Article 9, paragraph 2, letter a), of the Regulation, is not considered a suitable element to negate the unlawful nature of the processing, given that within the employment relationship, as well as in the context of selection procedures, the consent of the candidate cannot be considered a suitable condition for the lawfulness of the processing, much less in the case of data relating to health, considering the asymmetry that characterizes the worker (and the candidate for a job) in relation to the employer.

It is also noted that Article 9, paragraph 2, letter h) of the Regulation identifies a specific condition of lawfulness that can be asserted by the competent doctor in the performance of their duties, but which does not therefore cover the treatments carried out by the Company, which should have limited itself to asking the interested party to send their medical documentation directly to the competent doctor for the necessary evaluations. The Company has, therefore, processed the health data of the complainant in the absence of a legal basis. It is noted in this regard that such unlawful conduct, which occurred starting from January 22, 2018 (the date of receipt of the email containing the link to the documentation), was established during the proceedings with the notification of the violation dated April 11, 2022, before the five-year limitation period provided for by Article 28 of Law 689/81 had expired, which thus interrupted the limitation period for the right to collect the amounts due for the violation (Cass. civ., I section, August 12, 1992, no. 9545; Cass., I section, April 27, 1999, no. 4201).

It is further noted that the violation occurred on a date prior to the full effectiveness of the Regulation and that the rules affected by the violation, in force at the time of the event, are identical in content to

those currently provided for by the Regulation. Therefore, it is established that the Company violated Articles 11 and 26 of the Code, in the version prior to the amendments made by Legislative Decree 101 of 2018 (according to the cited Article 11, paragraph 1, letter a) "the personal data subject to processing are [...] processed lawfully"; according to the cited Article 26, paragraph 1, "sensitive data may only be processed with the written consent of the interested party and prior authorization from the Guarantor, in compliance with the conditions and limits established by this code, as well as by law and regulations", paragraph 4, "sensitive data may also be processed without consent, with prior authorization from the Guarantor [...] d) when necessary to fulfill specific obligations or tasks provided for by law, regulation, or community legislation for the management of the employment relationship, including in matters of health and safety at work and for the population, and social security and assistance, within the limits provided by the authorization and without prejudice to the provisions of the code of ethics and good conduct referred to in Article 11"), provisions that correspond to Article 9 of the Regulation (paragraph 1 "it is prohibited to process [...] data related to health", paragraph 2 "paragraph 1 does not apply if [...] the processing is necessary to fulfill the obligations and exercise the specific rights of the data controller or the interested party in the field of labor law and social security and social protection, to the extent that it is authorized by Union law or the laws of the Member States or by a collective agreement under the laws of the Member States, in the presence of appropriate safeguards for the fundamental rights and interests of the interested party") which constitutes an expression of the principle of lawfulness of processing (Article 5, paragraph 1, letter a) of the Regulation, "personal data are [...] processed lawfully"). This is also in relation to specific applicable sector regulations, in particular Legislative Decree No. 81/2008 and Law No. 68/1999.

3.2. Lack of information.

The processing of the aforementioned data by the Company was also carried out without providing adequate information to the interested party, pursuant to Article 13 of the Code, in the version prior to the amendments made by Legislative Decree No. 101 of 2018, now reproduced by Article 13 of the Regulation, - which constitutes a direct expression of the principle of transparency (see Article 5, paragraph 1, letter a) of the Regulation) -; in particular, the purposes of the processing and the recipients of the collected data were not clearly communicated. The data controller is obliged to provide, before the processing begins, all information regarding the essential characteristics of the processing. The Company, in fact, did not provide suitable evidence to demonstrate compliance with the provisions of Article 13 of the Code in the version prior to the amendments made by Legislative Decree No. 101 of 2018 (the interested party is previously informed, among other things, about "a) the purposes and methods of processing to which the data are intended; [...] d) the subjects or categories of subjects to whom the personal data may be communicated or who may become aware of them as data processors or persons in charge, and the scope of dissemination of the same data"), now Article 13 of the Regulation, since it limited itself to stating that during the "interview at the company with the [commercial representative of the corporate group], [the latter] duly informed the interested party that, in order to assess the compatibility of the issues presented by the interested party with the requirements for the available position, the health data would be processed by the competent doctor and highlighting that the information regarding the selection of candidates was posted in the company premises where the interview took place" and that "there is no documentation on file" in this regard.

The principle of fairness, provided for by Article 11, paragraph 1, letter a) of the Code, in the version prior to the amendments made by Legislative Decree No. 101 of 2018 ("the personal data subject to processing are [...] processed [...] fairly"), now corresponding to Article 5, paragraph 1, letter a) of the Regulation ("the personal data are [...] processed in a [...] fair manner"), is also violated, considering that the obligation to inform the candidate for insertion in a work context within the framework of training internships aimed at hiring under Law No. 68/1999 is an expression of the general principle of fairness.

The Company has, therefore, processed the claimant's data in an incorrect manner and in the absence of information. Such unlawful conduct has been established during the proceedings and occurred on a date prior to the full effectiveness of the Regulation; however, the rules affected by the violation, in force at the time, are identical in content to those subsequently introduced by the Regulation.

Therefore, the Company violated Article 13 of the Code in the version prior to the amendments made by Legislative Decree 101 of 2018, a provision that corresponds to Article 13 of the Regulation and constitutes an expression of the principle of transparency (Article 5, paragraph 1, letter a) of the Regulation). The conduct was also carried out in violation of the principle of fairness, now provided for by Article 5, paragraph 1, letter a) of the Regulation, and, at the time of the facts, found in Article 11, paragraph 1, letter a) of the Code in the version prior to the amendments made by Legislative Decree 101 of 2018.

3.3. Violation of the right of access. The conduct of the Company, with reference to the requests for the exercise of the right of access, is also in contrast with the obligations that weigh on the data controller to "facilitate the exercise of the rights of the data subject pursuant to Articles 15 to 22" (see Article 12, paragraph 2, of the Regulation), and, in the case of non-compliance, "inform the data subject without delay, and at the latest within one month of receiving the request, of the reasons for the non-compliance and the possibility of lodging a complaint with a supervisory authority and of seeking judicial remedy" (Article 12, paragraph 4 of the Regulation), as well as to allow the right of access pursuant to Article 15 of the Regulation to their personal data. This is considering that, following an initial access request (January 26, 2018), the Company merely communicated to the claimant that it could not indicate the name of the competent doctor, who "before any insertion verifies the existence of the suitable conditions of the possible candidates in relation to the tasks for which they have been selected" and that it did not have the possibility to "challenge the provisions of the competent doctor [...] who expressed his medical opinion by evaluating the documentation provided by you in relation to the tasks that you were supposed to perform" (February 2, 2018). Following the second access request submitted by the claimant (April 24, 2018, reiterated on May 15, 2018), the Company did not provide any response. Only following the intervention of the Guarantor, on March 3, 2021, via registered letter received by the data subject on March 20, 2021, did the Company send an actual response to the claimant indicating the name of the competent doctor as well as the opinion issued by him. The Company's first response cannot be considered adequate given that, based on Article 15 of the Regulation, the data controller is required to communicate, if requested by the data subject, among other things, "the recipients or categories of recipients to whom the personal data have been or will be communicated." In denying the exercise of the right of access, the Company, limiting itself to referring, without further explanations, to the "company procedure," did not in any case inform the claimant of the possibility, precisely in the face of the denial, to appeal to the judicial authority or to lodge a complaint with the Guarantor, as prescribed by Article 12, paragraph 4, of the Regulation. To the second request (among other things, reiterated), with which the content of the request was specified, no response was provided, until, as mentioned, the opening of the investigation before the Authority. The conduct of the Company, which began before the full effectiveness of the Regulation and continued thereafter (considering that, only on March 3, 2021, the Company sent the response to the claimant), violates Articles 12 and 15 of the Regulation.

3.4. Violation of the principle of purpose limitation. The Company, on January 19, 2018, asked the claimant to send the documentation relating to the medical examination report/final report of the commission for the assessment of civil disability, stating only that it was requested "by the occupational doctor for the purposes of the pre-employment examination"; however, it subsequently communicated the data contained in the aforementioned documentation to the competent doctor to prepare a preliminary "opinion" in the absence of a pre-employment medical examination. This was done without any information being provided to the claimant, as emerged from the investigation. The conduct of the Company was therefore carried out in a manner not compliant with the provisions of Article 11, paragraph 1, letter b) of the Code, in the version prior to the amendments made by Legislative Decree No. 101 of 2018 ("the personal data subject to processing are [...] collected and recorded for determined, explicit, and legitimate purposes, and usable in other processing operations in terms compatible with those purposes"), which today corresponds to Article 5, paragraph 1, letter b) of the Regulation ("personal data are [...] collected for determined, explicit, and legitimate purposes, and subsequently processed in a manner that is not incompatible with those purposes," principle of purpose limitation).

4. Conclusions: declaration of unlawfulness of the processing. Corrective measures pursuant to Article 58, paragraph 2, of the Regulation. For the above reasons, the Authority believes that the statements, documentation, and reconstructions provided by the data controller during the investigation do not allow for overcoming the objections.
exceed the amount specified for the most serious violation.

6. Adoption of the injunction order for the application of the administrative monetary penalty and accessory sanctions (arts. 58, par. 2, lett. i), and 83 of the Regulation; art. 166, comma 7, of the Code).

As a result of the procedure, it is found that Marcozzi Brand s.r.l. has violated arts. 11, 13, and 26 of the Code in the version prior to the amendments made by d. lgs n. 101 of 2018 (now corresponding to arts. 5, par. 1, lett. a) and b), 9, 13 of the Regulation) and to arts. 12 and 15 of the Regulation.

Regarding the violation of arts. 13 and 26 of the Code in the version prior to the amendments made by d. lgs. n. 101 of 2018, having established that the unlawful conduct was completed before the full effectiveness of the Regulation, and that even in the current regulatory context the corresponding norms provide for the application of an administrative monetary penalty, based on the principle of legality (art. 1 l. n. 689 of 1981), reference must be made to the sanctioning norms of arts. 161 and 162 comma 2-bis of the Code, in the version prior to the amendments made by d. lgs. n. 101 of 2018 (according to art. 161 cited “the violation of the provisions of art. 13 is punished with the administrative penalty of payment of a fine from six thousand euros to thirty-six thousand euros”; according to art. 162 comma 2-bis cited “in the case of processing of personal data carried out in violation [...] of the provisions indicated in art. 167, the penalty of payment of a sum from ten thousand euros to one hundred twenty thousand euros is also applied administratively, in any case”).

Considering art. 164-bis comma 1 of the Code in the version prior to the amendments made by d. lgs. n. 101 of 2018 (“if any of the violations referred to in articles 161, 162 [...] is of lesser severity, also taking into account the economic or social nature of the activity carried out, the minimum and maximum limits established by the same articles are applied at a rate equal to two-fifths”) and also considering art. 11 of l. n. 689 of 1981 (noting in particular that the conduct concerned one interested party and that, prior to the change in legal form, the Company was a general partnership), it is believed that the applicable sanctions can be quantified at 2,400 euros for the violation of art. 13 of the Code, and at 4,000 euros for the violation of art. 26 of the Code.

With reference to the violation of art. 11 of the Code in the version prior to the amendments made by d. lgs. n. 101 of 2018, considering that in the previous regulatory system there was no corresponding sanctioning norm, while the unlawfulness of the conduct remains, no administrative monetary penalty is applied.

Regarding the conduct consisting of the failure to provide an adequate response to access requests, a conduct that began before the full effectiveness of the Regulation but continued subsequently since only following the intervention of the Guarantor, on March 3, 2021, through a registered letter received by the interested party on March 20, 2021, did the Company send an effective response to the complainant indicating the name of the competent doctor as well as the opinion issued by the same, it has violated arts. 12 and 15 of the Regulation. In this regard, the application of the administrative monetary penalty provided for by art. 83, par. 5, lett. b) of the Regulation is envisaged.

It is deemed necessary to apply paragraph 3 of art. 83 of the Regulation where it states that “If, in relation to the same processing or to related processing, a data controller [...] violates, with intent or negligence, various provisions of this regulation, the total amount of the administrative monetary penalty does not exceed the amount specified for the most serious violation.” The total amount of the penalty is calculated so as not to exceed the amount specified for the most serious violation.
overcome the maximum penalty provided by the same
art. 83, par. 5.

With reference to the elements listed in art. 83, par. 2, of the Regulation for the purpose of applying the administrative monetary penalty and its quantification, considering that the penalty must “in any case

[be] effective, proportionate, and dissuasive” (art. 83, par. 1 of the Regulation), it is represented that, in this case, the following circumstances have been considered:

a) in relation to the nature, severity, and duration of the violation, the nature of the violation concerning the rules on the exercise of rights and the period during which the violation persisted has been deemed relevant;

b) with reference to the intentional or negligent nature of the violation and the degree of responsibility of the holder, the conduct of the Company and its degree of responsibility, which did not comply with the regulations on data protection concerning multiple provisions, have been taken into account;

c) in favor of the Company, consideration has been given to the cooperation with the Supervisory Authority demonstrated during the proceedings and the fact that the processing concerned only one data subject.

It is also believed that the economic conditions of the offender, determined based on the tax declaration for the year 2021 (taking into account the change in legal form that occurred on January 12, 2022), are relevant in this case, considering the aforementioned principles of effectiveness, proportionality, and dissuasiveness to which the Authority must adhere in determining the amount of the penalty (art. 83, par. 1, of the Regulation). Lastly, the extent of the penalties imposed in similar cases is taken into account.

In light of the above elements and the assessments made, it is deemed appropriate, in this case, to apply, regarding the violation of arts. 12 and 15 of the Regulation, against Marcozzi Brand s.r.l., the administrative penalty of a payment of an amount equal to €2,000 (two thousand).

In this context, it is also considered, in light of the type of violations identified that concerned the general principles of processing, the rules on the exercise of rights, and that the data subject to processing are data belonging to special categories of data, that pursuant to art. 166, paragraph 7, of the Code and art. 16, paragraph 1, of the Regulation of the Guarantor no. 1/2019, the publication of this provision on the Guarantor's website should proceed.

It is also believed that the conditions referred to in art. 17 of Regulation no. 1/2019 are met.

ALL OF THE ABOVE CONSIDERED, THE GUARANTOR

notes the illegality of the processing carried out by Marcozzi Brand s.r.l. (formerly Marcozzi Gabriele & C. s.n.c.), represented by its legal representative, with registered office at Contrada Valdaso 47/A, Campofilone (FM), C.F. 01589860442, pursuant to art. 143 of the Code, for the violation of arts. 11, 13, and 26 of the Code in the version prior to the amendments made by Legislative Decree no. 101 of 2018 (now corresponding to arts. 5, par. 1, lett. a) and b), 9, 13 of the Regulation) and to arts. 12 and 15 of the Regulation;

ORDERS

pursuant to art. 58, par. 2, lett. i) of the Regulation, Marcozzi Brand s.r.l. to pay the total sum of €8,400 (eight thousand four hundred) as an administrative monetary penalty for the violations indicated in this provision;

COMMANDS

therefore Marcozzi Brand s.r.l. to pay the aforementioned sum of €8,400 (eight thousand four hundred), according to the methods indicated in the annex, within 30 days from the notification of this provision, under penalty of the adoption of the consequent executive acts pursuant to art. 27 of Law no. 689/1981;

DISPOSES

the publication of this provision on the Guarantor's website pursuant to art. 166, paragraph 7, of the Code and art. 16, paragraph 1, of the Regulation of the Guarantor no. 1/2019, and believes that the conditions referred to in art. 17 of Regulation no. 1/2019 are met.

Pursuant to art. 78 of the Regulation, as well as arts. 152 of the Code and 10 of Legislative Decree no. 150/2011, an appeal against this provision may be made to the ordinary judicial authority, with an application filed with the ordinary court of the place identified in the same art. 10, within thirty days from the date of communication of the provision itself, or sixty days if the applicant resides abroad.

Rome, June 8, 2023

THE PRESIDENT

Stanzione

THE REPORTER

Scorza

THE SECRETARY GENERAL

Mattei